

Amendment No. 1 to HB0200

Crawford
Signature of Sponsor

AMEND Senate Bill No. 192*

House Bill No. 200

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 57-3-202(i)(1), is amended by deleting the subdivision and substituting:

(i)

(1) A manufacturer's license issued to or renewed by a manufacturer under this section shall also allow such manufacturer to sell at retail on the licensed premises of the manufacturer products that are manufactured on the manufacturer's premises as well as a product for which a manufacturer owns the intellectual property rights and that the manufacturer received bottled as imported from Mexico, and that is in compliance with all United States federal regulatory requirements for the importation of the product and all established standards of the federal government of Mexico and the Consejo Regulador del Tequila that designate the product as a distinctive product that must be manufactured in Mexico. A manufacturer shall not sell more than five gallons (5 gals.) or one-sixth (1/6) of a barrel of its products to any one (1) individual per visit to the premises. The manufacturer may serve samples of the product manufactured or distilled at the premises or imported and registered for distribution and sale in this state in accordance with this section and applicable state law to any person of legal drinking age with or without cost or may include such samples as part of a tour of the manufacturer's or distiller's premises available to the public with or without cost. Such samples may be made available at any location on the

manufacturing premises permitted by federal law. The manufacturer shall disclose to the commission the location where samples are available. The hours of sale for the manufacturer to sell products at retail shall be between the hours of eight o'clock a.m. (8:00 a.m.) and eleven o'clock p.m. (11:00 p.m.) on Monday through Saturday and between the hours of ten o'clock a.m. (10:00 a.m.) and eleven o'clock p.m. (11:00 p.m.) on Sunday.

SECTION 2. Tennessee Code Annotated, Section 57-3-202(i)(4)(A) is amended by deleting the subdivision and substituting:

(A) A distiller's license issued or renewed under this section authorizes a distillery to sell to any person of legal drinking age alcoholic beverages for consumption on the premises of the distillery, other than the bonded premises, where such consumption is also permitted by federal law. Distilled spirits sold under this subdivision (i)(4) must be manufactured on the premises of the distillery or otherwise lawfully obtained in accordance with the provisions of this section.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.